

Before the
FEDERAL MARITIME COMMISSION

Docket No. 2010 (F)

Simple Forwarding, Inc.

v.

CULines and Norton Lilly International

**COMPLAINANT’S MOTION FOR LEAVE TO AMEND COMPLAINT AND REQUEST FOR
RETURN TO INFORMAL ADJUDICATION**

Complainant Simple Forwarding Inc. (“Complainant”), by and through its Representative Sara Dandan of FourOneOne LLC, respectfully submits this combined Motion and Request; with the Motion pursuant to 46 CFR § 502.66(a) and 46 CFR § 502.69 of the Federal Maritime Commission’s Rules of Practice and Procedure.

BACKGROUND

Simple Forwarding, acting as an OTI and Shipper facilitated the movement of container number TWCU8055871 under believed CULines Master Bill of Lading number CULVSHA2106318¹, which accrued 21 days of misapplied per diem Charges from the 14th of October through the 3rd of November 2021. After multiple attempts by Complainant to resolve this matter with both Respondents named in their Verified Complaint, on May 28th 2024, Complainant filed a Verified Complaint with the

¹ Complainant has never been given a copy of the Master Bill of Lading, despite requests

Federal Maritime Commission naming CULines and Norton Lilly International and alleging violations of “[failure] to establish, observe, and enforce just and reasonable practices relating to receiving, handling, storing, and delivering the property of Claimant per 46 U.S.C. § 41102(c) and Section 545.4 of the Code of Federal Regulations, and the Interpretive Rule on Demurrage and Detention Under the Shipping Act,” (Verified Complaint- ¶ 3, Section D); and that “[Respondent’s] knowingly imposed unreasonable and misapplied per diem fees in violation of 46 U.S.C. § 41102(c) and Section 545.4 of the Code of Federal Regulations, and The Interpretive Rule on Demurrage and Detention Under the Shipping Act to Simple Forwarding,” (Verified Complaint- ¶ 3, Section E).

Respondent CULines Counsel has since withdrawn from this case, and as far as the Complainant is aware, Respondent Norton Lilly International has never Responded as required by the Commission.

LEGAL STANDARD

Under 46 C.F.R. § 502.66, the Commission or the Presiding Officer has the discretion to allow or deny amendments to any pleadings, including complaints. However, any proposed amendment "may not broaden the issues without offering the opposing party the opportunity to reply to the amended pleading and to prepare for the broadened issues." 46 C.F.R. § 502.66(a).

The Commission's rules do not establish specific criteria for granting or denying a motion to amend a complaint. Accordingly, under 46 C.F.R. § 502.12, in situations "not covered by a specific Commission rule, the Federal Rules of Civil Procedure will be followed to the extent that they are consistent with sound administrative practice."

Federal Rules of Civil Procedure 15(a)(2), states that after the initial 21-day period for amending a pleading as a matter of course (FRCP 15(a)(1)(B)), further amendments are allowed either "with opposing parties' written consent or leave of court." The rule also notes that "leave should be

freely given when justice so requires." A court's "denial of leave to amend therefore constitutes an abuse of discretion unless the court gives sufficient reason, such as futility of amendment, undue delay, bad faith, dilatory motive, undue prejudice, or repeated failure to cure deficiencies by previous amendments" *Bancoult v. McNamara*, 214 F.R.D. 5, 8 (D.D.C. 2003).

PROPOSED AMENDMENTS TO COMPLAINT

Complainant wishes to amend the Initial Verified Complaint and has attached the new Amended Complaint for viewing and approval, along with the screenshots provided with the original Complaint to this Motion and Request, in the interest of moving these proceedings forward. None of Complainant's amendments broadens any issues. All amendments clarify the matters at hand and serve to ensure that justice prevails (especially the change from a request for a waiver to one for a full refund). The following changes will be made to the Initial Verified Complaint, with additional context provided if/as needed:

- a) although they are the same entity, name *China United Lines Ltd aka CULines* in the Amended Complaint from the previously named *CULines*
- b) add "and as a "Person" involved in the oceanborne foreign commerce of the United States under provisions of Title 46, subtitle IV of the United States Code" (Amended Complaint *II (a) and *II (b))
- b) provide greater specificity as to the container number, MBL number, and dates in question (Amended Complaint *E)
- c) change the request for reparations from a request for a waiver to a request for a full refund (Amended Complaint *VI)

REQUEST TO ADJUDICATE AS A SMALL CLAIMS COMPLAINT

Complainant initially filed with the Commission a Small Claims Complaint. Proceedings were reassigned to a Judge and docketed as a Formal Complaint after Specially Appearing Counsel for Respondent CULines did not consent to Informal Proceedings. In light of that Counsel having since withdrawn; Complainant requests that this case be once again adjudicated as a Small Claims Complaint under a Small Claims Officer as originally intended, be removed from the Formal Docket, and resume the previous Docket Number of 2010 (I).

CONCLUSION

For the foregoing reasons, Complainant respectfully asks that the Motion For Leave be Granted, as well as the Request to resume proceedings under the original Small Claims procedures.

DUTY TO CONFER

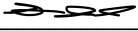
Pursuant to 46 C.F.R. § 502.71(a), Complainant conferred with Respondent CULines previous Counsel as to this Motion to Amend and was informed by CULines Counsel at the time that “CUL has not yet taken a position and will file a reply within the time permitted by the FMC Rules.” After that Counsel withdrew; Complainant initiated discussions with both Respondents directly that included Complainants repeated notification of intent to file this Motion as well as to attempt to settle the entire matter amicably and open a dialog on both matters, but did not receive an answer from either Respondent.

I, Sara Dandan, have been admitted to general practice before the Federal Maritime Commission. I respectfully submit this Motion on behalf of Complainant Simple Forwarding Inc.

Sara Dandan

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Signature: _____

Date: 09/12/2024

CERTIFICATE OF SERVICE

I certify that on September 12th, 2024, a true and current copy of the foregoing was filed via electronic mail with the Federal Maritime Commission and the following known parties of record for the

Respondents:

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